

STATE OF NEW YORK

2400--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. EICHENSTEIN, BUTTENSCHON -- read once and referred to the Committee on Corporations, Authorities and Commissions -- recommitted to the Committee on Corporations, Authorities and Commissions in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to requiring evidence and consideration of the economic impact of utility rates and charges by the public service commission

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 119-f to read as follows:

§ 119-f. Economic impact assessment. 1. Prior to approving any major increase in rates or charges proposed by a public utility company or municipality, the commission shall consider the economic impact of any such proposed increase in the rates or charges upon consumers in the area served by the company or municipality proposing such increase. Such consideration shall be in relation to any determination made by the commission under subdivision one of section sixty-five, subdivision one of section seventy-nine, subdivision one of section eighty-nine-b, and subdivision one of section ninety-one of this chapter. For purposes of this subdivision, "major increase" shall mean an increase in the rates and charges which would increase the aggregate revenues of the applicant more than the greater of three hundred thousand dollars or two and one-half percent.

2. In assessing economic impact the commission shall, with respect to each public utility company or municipality's service territory and customers, consider, at a minimum:

a. unemployment data, income information and the number of persons receiving social services assistance;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 b. the average monthly utility bill for each class of customers who
2 would be affected by an increased rate or charge and the estimated
3 increased utility bill for each such class of customers; and

4 c. the latest federal bureau of labor statistics' consumer price index
5 figures indicating the average cost of living and the average cost of
6 fuel and utilities for the nation and, if possible for the state or the
7 service territory affected by such increased rate or charge.

8 § 2. This act shall take effect immediately and shall apply to each
9 request for increased rates or charges submitted on or after the effec-
10 tive date of this act.